

Labour Administration and Enforcement - The Foundation Track

Chapter F2.10 — From Zero: The Ministry, Its Offices, the Tripartite Bodies, and Where EPFO Sits

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NOTE · HOW TO USE THIS DOCUMENT

The closing chapter of Module 2, and the one that places YOU on an organisation chart. It covers the Ministry of Labour and Employment and its attached offices - the Chief Labour Commissioner, DGMS, DGFASLI, the Labour Bureau which compiles the CPI-IW that drives dearness allowance and therefore your provident fund calculations, and the V. V. Giri National Labour Institute - then the tripartite consultative machinery headed by the Indian Labour Conference, the digital infrastructure of e-Shram and the Shram Suvidha Portal, and the enforcement and prosecution machinery. It ends by locating EPFO precisely within that structure, which is the natural bridge into Module 3. Institutional questions of exactly this kind appeared in the 2023 paper - CAMPA, BIRAC, eSanjeevani and the Department of Economic Affairs - so the three-fact rule applies throughout: nature, parent Ministry, one distinctive number or function. Study time 3 hours.

This is the FOUNDATION layer. Institutional names, locations and base years are as at August 2026. Session numbers of periodically convened bodies, and current office-holders, change - such items are marked CONFIRM rather than asserted.

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0. Why an Institutional Chapter Earns Marks

The paper asks institutional questions in a very predictable form, and you already know the method for answering them.

MUST MASTER · THE THREE-FACT RULE, APPLIED TO EVERY BODY IN THIS CHAPTER

From the verified 2023 paper: **CAMPA** (which Ministry regulates the fund), **BIRAC** (what were its objectives), **eSanjeevani** (which purpose does it serve), the **Department of Economic Affairs** (what does it do), and the **National Health Policy's 2.5 per cent of GDP** target. Five questions, all of the same shape.

Every one was answerable by three facts:

- 1 **NATURE** - is it constitutional, statutory, an executive body, a fund, a scheme, or an attached office?
- 2 **PARENT** - which Ministry or Department?
- 3 **ONE distinctive number or function** - a location, a base year, a rate, a founding year

So learn every body in this chapter as a triple, not as a paragraph. That is the whole technique, and it converts an unbounded topic into a finite list.

And note the highest-value distinction in the whole chapter, because it is the commonest error: EPFO and ESIC are STATUTORY bodies - created by Acts of Parliament. The **Labour Bureau, DGMS and DGFASLI are ATTACHED or SUBORDINATE OFFICES** of the Ministry - created by executive order, not by statute. **NITI Aayog is executive.** The **Finance Commission is constitutional.** Getting the *category* right is usually worth more than getting the detail right.

STUDY SESSION · CHAPTER F2.10 - THE THREE SESSIONS

- 1 **Session 1** - The Ministry and its offices (Section 1)
- 2 **Session 2** - The tripartite bodies, and labour statistics including **CPI-IW** (Section 2)
- 3 **Session 3** - Digital infrastructure, enforcement, and **where EPFO sits** (Section 3)

Then **40 graded questions**. Budget **four sessions**, about **two days**.

1. Session 1 - The Ministry and Its Offices ★★★★★

1.1 The constitutional starting point

Recall Chapter F1.1: **labour is on the Concurrent List** - Entries 22, 23, 24 and 36 - with **mines and oilfields on the Union List at Entry 55**.

Two consequences shape the entire administrative structure:

- 1 There is a **Union Ministry of Labour and Employment** and a **Labour Department in every State**, each with its own Labour Commissioner and inspectorate. Both are competent
- 2 The **appropriate Government** doctrine decides which of the two administers a given establishment - **Central** for railways, mines, oilfields, major ports, banking and insurance companies and central public sector undertakings; **State** for everything else

IN PLAIN ENGLISH · WHY THIS MATTERS PRACTICALLY TO YOU

EPFO is a central organisation and the **Central Government is the appropriate Government** for the EPF & MP Act throughout India. So unlike a Factories Act inspector, whose jurisdiction stops at a State boundary, an EPFO officer operates within a **single national statutory framework** administered through regional and sub-regional offices.

That is an administrative advantage worth understanding: **one Act, one Scheme, one rate, one national machinery** - which is precisely why provident fund compliance data is more consistent across India than, say, shops-and-establishments compliance.

1.2 The offices to learn as triples

MUST MASTER · THE MINISTRY'S PRINCIPAL OFFICES - NATURE, LOCATION, DISTINCTIVE FUNCTION

Body	Where	Nature and distinctive function
Office of the Chief Labour Commissioner (Central)	New Delhi	An attached office . Also called the Central Industrial Relations Machinery (CIRM) . Enforces labour laws in the central sphere , conducts conciliation in central-sphere disputes, and verifies trade union membership
Directorate General of Mines Safety (DGMS)	Dhanbad	A subordinate office . Enforces the Mines Act, 1952 - recall that mine safety is Union List Entry 55 , so this is exclusively central
Directorate General Factory Advice Service and Labour Institutes (DGFASLI)	Mumbai	A subordinate office . Technical advice on factory safety and health, and on dock work safety. Runs the Central Labour Institute
Labour Bureau	Chandigarh and Shimla	An attached office . Compiles labour statistics - most importantly the Consumer Price Index for Industrial Workers (CPI-IW)
V. V. Giri National Labour Institute (VVGNI)	Noida	An autonomous body. Research, training and education in labour and industrial relations
Directorate General of Employment (DGE)	New Delhi	Employment services policy; runs the National Career Service (NCS) portal
Dattopant Thengadi National Board for Workers Education and Development	Nagpur	Workers' education - formerly the Central Board for Workers Education
EPFO	Head office New Delhi	A STATUTORY body under the EPF & MP Act, 1952 . Your organisation - see Session 3
ESIC	New Delhi	A STATUTORY body under the ESI Act, 1948

The four locations most often asked: DGMS Dhanbad · DGFASLI Mumbai · Labour Bureau Chandigarh and Shimla · VVGNI Noida.

And the memory hook for the two technical directorates: DGMS is mines and sits in Dhanbad, a coal city. DGFASLI is factories and docks and sits in Mumbai, a port city. The location matches the subject in both cases, which makes them hard to swap once noticed.

CHECK YOURSELF · SESSION 1

- 1 Why are there both a Union Ministry and State Labour Departments?
- 2 Name four categories for which the Central Government is the appropriate Government
- 3 Give the location and function of DGMS, DGFASLI, the Labour Bureau and VVGNI
- 4 What is the Central Industrial Relations Machinery, and what does it do?
- 5 Classify each of these: EPFO, ESIC, Labour Bureau, VVGNI, DGMS - statutory, attached, subordinate or autonomous?

2. Session 2 - Tripartite Bodies and Labour Statistics ★★★★★

2.1 The tripartite consultative machinery

Recall from Chapter F2.1 that the ILO is **tripartite** - government, employers, workers. India reproduced that principle domestically.

MUST MASTER · THE INDIAN LABOUR CONFERENCE - THE APEX BODY

- 1 The **Indian Labour Conference (ILC)** is the **apex tripartite consultative body** on labour matters in India
- 2 First convened in **1942**
- 3 **Chaired by the Union Minister of Labour and Employment**
- 4 Composed of representatives of the **Central and State Governments, central trade union organisations and employers' organisations**
- 5 Its **recommendations are advisory**, not binding - which is the point most often tested
- 6 Below it sits the **Standing Labour Committee (SLC)**, which considers matters referred to it by the ILC and prepares the ground for its sessions
- 7 Below both sit **Industrial Committees** for particular industries

The single most examinable ILC fact, and you already know it: the **15th session of the Indian Labour Conference in 1957** laid down the **norms for a need-based minimum wage** - three consumption units, 2,700 calories, 72 yards of cloth, rent, and 20 per cent for fuel and miscellaneous. That is the same set you learned in Chapter F2.5, and it is the reason the ILC appears in wage questions as well as institutional ones.

Session numbers of recent ILCs are a CONFIRM item - they are convened irregularly and I will not assert a figure I cannot verify.

2.2 Labour statistics - and the index that drives your calculations

MUST MASTER · CPI-IW - THE INDEX THAT CONNECTS STATISTICS TO YOUR OWN WORK

The **Consumer Price Index for Industrial Workers (CPI-IW)** is compiled and published by the **Labour Bureau**, with the current series on **base 2016 = 100** (revised from the earlier **2001 = 100**).

Why it matters to an APFC, in a chain you should be able to state:

- 1 **CPI-IW** measures the change in retail prices faced by industrial workers
- 2 **Dearness allowance** is revised against CPI-IW
- 3 **Dearness allowance is part of "wages"** under the uniform definition - basic pay **plus dearness allowance** plus retaining allowance, as you learned in Chapter F2.1
- 4 Therefore a rise in CPI-IW raises DA, which raises **wages**, which raises **provident fund contributions**

So a statistical index compiled in Chandigarh ends up determining the rupee amount you assess in a Section 7A inquiry. **That is the connection to draw if asked why a Provident Fund officer should care about price indices.**

COMMON UPSC TRAP · WHICH BODY PRODUCES WHICH STATISTIC - A FAVOURITE CONFUSION

- 1 **CPI-IW** - the **Labour Bureau**, Ministry of Labour and Employment
- 2 **CPI (Rural, Urban, Combined)** - the **National Statistical Office (NSO)**, Ministry of Statistics and Programme Implementation
- 3 **Wholesale Price Index (WPI)** - the **Office of the Economic Adviser**, Ministry of Commerce and Industry
- 4 **Periodic Labour Force Survey (PLFS)** - the **NSO**, **not** the Labour Bureau. This is the commonest error in this area. PLFS gives unemployment and labour force participation rates
- 5 **e-Shram** database of unorganised workers - the **Ministry of Labour and Employment**

The rule: prices for industrial workers are the Labour Bureau's; the labour force survey is the NSO's.

CHECK YOURSELF · SESSION 2

- 1 What is the ILC, when was it first convened, who chairs it, and are its recommendations binding?
- 2 Which session of the ILC produced the need-based minimum wage norms, in what year, and what were they?
- 3 What sits below the ILC?
- 4 Who compiles CPI-IW, and on what base year?
- 5 State the four-step chain from CPI-IW to your provident fund assessment
- 6 Who conducts the PLFS? Who publishes the WPI?

3. Session 3 - Digital Infrastructure, Enforcement, and Where EPFO Sits ★★★★★

3.1 The digital infrastructure

KNOW · FOUR PLATFORMS TO LEARN AS TRIPLES

- 1 **Shram Suvidha Portal** - Ministry of Labour and Employment. Provides a **Labour Identification Number (LIN)** to each establishment, **single online return**, and **transparent, computerised allocation of inspections**. It is the machinery through which the **Inspector-cum-Facilitator's** randomised web-based inspection actually operates
- 2 **e-Shram** - launched **2021**. A **national database of unorganised workers**, each registered worker receiving a **Universal Account Number (UAN)**. It is the identity rail on which unorganised-sector social security is being built
- 3 **National Career Service (NCS)** - Directorate General of Employment. Job matching, career counselling and vocational guidance
- 4 **Universal Account Number (UAN)** under **EPFO** - a portable number linking all of a member's provident fund accounts across employers. Note that the phrase "UAN" is used both in the EPFO sense and in the e-Shram sense; read the context

The strategic point, which is also good interview material: the Codes rest much more heavily on **records and registration** and much less on **physical inspection** than the statutes they replaced. Shram Suvidha and e-Shram are what make that shift possible - and whether the reform succeeds depends substantially on whether these platforms work. That is the empirical question you should name when discussing the Codes.

3.2 Enforcement and prosecution

- 1 The **Inspector-cum-Facilitator** replaces the Inspector under all four Codes, with a dual role: **advising** on compliance and **enforcing** the law. Inspections are **web-based and randomly allocated**, to reduce discretion and harassment
- 2 **Compounding of offences** - the Codes permit certain offences, particularly those punishable with fine only, to be **compounded** on payment of a sum, avoiding prosecution. Compounding is generally **not available** for an offence repeated within a specified period
- 3 **Prosecution** requires the sanction or authorisation prescribed, and there are **limitation periods** for launching it
- 4 Under the Codes, an opportunity to **comply** must generally be given before prosecution for a first, non-serious contravention - the facilitation principle
- 5 **Social security and welfare boards** at State level administer funds for unorganised, building and construction, and other categories

3.3 Where EPFO sits - the bridge into Module 3

MUST MASTER · EPFO ON THE ORGANISATION CHART - AND WHERE AN APFC STANDS

- 1 **Nature** - a **STATUTORY body**, created by the **Employees' Provident Funds and Miscellaneous Provisions Act, 1952**. **Not** constitutional, **not** a company, **not** a mere department
- 2 **Parent** - the **Ministry of Labour and Employment**, Government of India
- 3 **Governing body** - the **Central Board of Trustees (CBT)**, a **tripartite** board **chaired by the Union Minister of Labour and Employment**, with representatives of the Central and State Governments, employers and employees
- 4 **Chief executive** - the **Central Provident Fund Commissioner (CPFC)**
- 5 **Field structure** - Additional Central PF Commissioners, Regional PF Commissioners, and **Assistant Provident Fund Commissioners** heading or working within regional and sub-regional offices
- 6 **What it administers** - the three schemes framed under the 1952 Act: the **EPF Scheme**, the **Employees' Pension Scheme 1995** and the **Employees' Deposit Linked Insurance Scheme 1976**

And now the complete constitutional-to-administrative chain, which you can state in under a minute and which draws together everything in Modules 1 and 2:

Article 39, 41, 42 and 43 in Part IV directed the State to secure a living wage, humane conditions and provision for old age, sickness and disablement → those directions being **non-justiciable**, Parliament acted voluntarily → drawing legislative competence from **Entries 23 and 24 of the Concurrent List** read with **Article 246** → enacting the **EPF & MP Act, 1952**, an **enabling Act** → which framed **three schemes** and created **EPFO**, a **statutory body** under the **Ministry of Labour and Employment**, governed by a **tripartite Central Board of Trustees** → EPFO being an "**other authority**" is "**State**" under **Article 12** → so an **APFC** exercising the **quasi-judicial** power under **Section 7A** is bound by **Article 14** (reasoned, consistent, non-arbitrary orders) and by **Article 21** as read in *Maneka Gandhi* (notice, hearing, fair procedure) → and an aggrieved employer appeals under **Section 7-I** to the **CGIT acting as the EPF Appellate Tribunal**, and thereafter to the **High Court under Article 226**, typically seeking **certiorari**.

That single chain is the spine of this entire manual. If you can say it fluently, you have understood Modules 1 and 2 as one argument rather than two subjects - and Module 3 is simply the detailed working out of its last three links.

CHECK YOURSELF · SESSION 3

- 1 What does the Shram Suvidha Portal provide, and what is a LIN?
- 2 What is e-Shram, when was it launched, and what identity number does it issue?
- 3 What is compounding, and when is it generally unavailable?
- 4 Classify EPFO by nature and parent Ministry. Who chairs its Board and who is its chief executive?
- 5 Name the three schemes EPFO administers, with their years
- 6 Recite the full chain from Part IV to Article 226 in under a minute

4. Graded Practice - 40 Questions ★★★★★

4.1 Level 1 - Recognition

Q. 1. The Directorate General of Mines Safety is headquartered at

(a) Nagpur (b) Dhanbad (c) Ranchi (d) Kolkata

Q. 2. DGFASLI is headquartered at

(a) New Delhi (b) Mumbai (c) Chennai (d) Kolkata

Q. 3. The Labour Bureau is located at

(a) New Delhi and Noida (b) Chandigarh and Shimla (c) Mumbai and Pune (d) Kolkata and Patna

Q. 4. The V. V. Giri National Labour Institute is at

(a) Noida (b) Nagpur (c) Hyderabad (d) Bengaluru

Q. 5. The Consumer Price Index for Industrial Workers is compiled by

(a) the National Statistical Office (b) the Labour Bureau (c) the Reserve Bank of India (d) the Office of the Economic Adviser

Q. 6. The current base year of the CPI-IW series is

(a) 2001 = 100 (b) 2011 = 100 (c) 2012 = 100 (d) 2016 = 100

Q. 7. The Indian Labour Conference was first convened in

(a) 1919 (b) 1929 (c) 1942 (d) 1947

Q. 8. The Indian Labour Conference is chaired by

(a) the Prime Minister (b) the Union Minister of Labour and Employment (c) the Chief Labour Commissioner (d) the Central Provident Fund Commissioner

Q. 9. The norms for a need-based minimum wage were laid down at which session of the Indian Labour Conference?

(a) 10th (b) 15th (c) 20th (d) 25th

Q. 10. The Central Industrial Relations Machinery is another name for the office of the

(a) Central Provident Fund Commissioner (b) Chief Labour Commissioner (Central) (c) Director General of Mines Safety (d) Labour Bureau

Q. 11. e-Shram was launched in

(a) 2017 (b) 2019 (c) 2021 (d) 2023

Q. 12. The Shram Suvidha Portal allots to each establishment a

(a) Universal Account Number (b) Labour Identification Number (c) Permanent Account Number (d) Employer Registration Code

Q. 13. The Periodic Labour Force Survey is conducted by

(a) the Labour Bureau (b) the National Statistical Office (c) the Directorate General of Employment (d) EPFO

Q. 14. EPFO is

(a) a constitutional body (b) a statutory body (c) a government company (d) an autonomous society

Q. 15. The Central Board of Trustees of EPFO is chaired by

(a) the Prime Minister (b) the Finance Minister (c) the Union Minister of Labour and Employment (d) the Central Provident Fund Commissioner

Q. 16. The chief executive of EPFO is the

(a) Chairman of the Central Board of Trustees (b) Central Provident Fund Commissioner (c) Secretary, Ministry of Labour and Employment (d) Chief Labour Commissioner

4.2 Level 2 - Understanding

Q. 17. Why do both a Union Ministry and State Labour Departments administer labour law?

(a) Because labour is on the Union List (b) Because labour is on the Concurrent List, so both are competent (c) Because the Constitution requires duplication (d) Because States administer only mines

Q. 18. For a banking company, the appropriate Government is

(a) the State Government (b) the Central Government (c) either, at the employer's option (d) the State Government unless the bank is nationalised

Q. 19. DGMS enforces the Mines Act exclusively at the central level because

(a) mines exist only in a few States (b) regulation of labour and safety in mines is Entry 55 of the Union List (c) the Mines Act predates the Constitution (d) States have delegated the function

Q. 20. Which one of the following is an attached or subordinate office rather than a statutory body?

(a) EPFO (b) ESIC (c) The Labour Bureau (d) The Central Board of Trustees

Q. 21. Recommendations of the Indian Labour Conference are

(a) binding on the Central Government (b) binding on State Governments (c) advisory (d) binding on employers only

Q. 22. The correct chain connecting CPI-IW to provident fund liability is

(a) CPI-IW determines the EPF interest rate (b) CPI-IW drives dearness allowance, DA is part of "wages", and wages determine provident fund contributions (c) CPI-IW fixes the wage ceiling (d) CPI-IW is used to compute gratuity only

Q. 23. Which one of the following is compiled by the National Statistical Office rather than the Labour Bureau?

(a) CPI-IW (b) The Periodic Labour Force Survey (c) The wage rate index for industrial workers (d) Occupational wage survey data

Q. 24. The Wholesale Price Index is published by

(a) the Labour Bureau (b) the Office of the Economic Adviser, Ministry of Commerce and Industry (c) the Reserve Bank of India (d) the National Statistical Office

Q. 25. Compounding of an offence means

(a) increasing the penalty for a repeat offence (b) settling the matter on payment of a sum, avoiding prosecution (c) combining several prosecutions into one (d) transferring the prosecution to a higher court

Q. 26. Compounding is generally not available where

(a) the offence is punishable with fine only (b) the offence is repeated within a specified period (c) the establishment employs more than 100 workers (d) the employer is a company

Q. 27. The Inspector-cum-Facilitator's inspections are allocated

(a) at the Inspector's discretion (b) by the employer's request (c) through a web-based randomised scheme (d) by the trade union

Q. 28. Which portal is the identity rail for unorganised-sector social security?

(a) Shram Suvidha (b) e-Shram (c) National Career Service (d) Umang

Q. 29. The three schemes administered by EPFO are

(a) EPF, EPS 1995 and EDLI 1976 (b) EPF, ESI and gratuity (c) EPS, NPS and APY (d) EPF, EDLI and maternity benefit

Q. 30. The Central Board of Trustees is best described as

(a) a bipartite body of employers and employees (b) a tripartite body including Central and State Governments, employers and employees (c) a purely governmental body (d) a judicial body

4.3 Level 3 - Recruitment Test standard**Q. 31. Match List-I with List-II and select the correct answer using the code below:**

List-I (Body)	List-II (Location)
A. DGMS	1. Mumbai
B. DGFASLI	2. Noida
C. Labour Bureau	3. Dhanbad
D. V. V. Giri National Labour Institute	4. Chandigarh and Shimla

(a) A-3 B-1 C-4 D-2 (b) A-1 B-3 C-4 D-2 (c) A-3 B-4 C-1 D-2 (d) A-3 B-1 C-2 D-4

Q. 32. Consider the following statements:

- 1 EPFO and ESIC are statutory bodies created by Acts of Parliament.
- 2 The Labour Bureau is an attached office of the Ministry of Labour and Employment.
- 3 The V. V. Giri National Labour Institute is a constitutional body.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 33. Which one of the following statements is not correct?

(a) The Indian Labour Conference is the apex tripartite consultative body on labour matters (b) Its 15th session in 1957 laid down the need-based minimum wage norms (c) Its recommendations are binding on the Central Government (d) The Standing Labour Committee prepares the ground for its sessions

Q. 34. Consider the following statements about the tripartite principle:

- 1 The ILO is the only tripartite agency in the United Nations system, with a 2:1:1 ratio.
- 2 The Indian Labour Conference reproduces the tripartite principle domestically.
- 3 The Central Board of Trustees of EPFO is also tripartite.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 35. An APFC's Section 7A order is challenged. The correct appellate route is

(a) the High Court directly under Article 32 (b) an appeal under Section 7-I to the CGIT acting as the EPF Appellate Tribunal, and thereafter the High Court under Article 226 (c) an appeal to the Central Board of Trustees (d) an appeal to the Chief Labour Commissioner

Q. 36. Which one of the following correctly states EPFO's constitutional position?

(a) It is a constitutional body under Article 280 (b) It is an "other authority" and therefore "State" under Article 12, so its officers are bound by Articles 14 and 21 (c) It is outside Part III, being an autonomous fund (d) It is a department of the Ministry, so Article 12 does not apply separately

Q. 37. The strongest reason the Codes' success depends on Shram Suvidha and e-Shram is that

(a) they replace the Labour Bureau (b) the Codes rest much more on records and registration and much less on physical inspection than the statutes they replaced (c) they compile the CPI-IW (d) they conduct the PLFS

Q. 38. Arrange the following in the order of the constitutional-to-administrative chain:

- 1 EPFO is created as a statutory body
- 2 Part IV directs the State to provide for old age and sickness
- 3 Parliament legislates under Concurrent List Entries 23 and 24
- 4 An APFC's order is reviewable under Article 226

(a) 2, 3, 1, 4 (b) 3, 2, 1, 4 (c) 2, 1, 3, 4 (d) 1, 2, 3, 4

Q. 39. Which one of the following pairs is not correctly matched?

(a) CPI-IW - Labour Bureau (b) PLFS - National Statistical Office (c) WPI - Office of the Economic Adviser (d) e-Shram - Ministry of Statistics and Programme Implementation

Q. 40. A question asks which Ministry regulates a particular fund or scheme. The most reliable method of answering is to

(a) guess from the name (b) apply the three-fact rule - identify its nature, its parent Ministry, and one distinctive number or function (c) assume it is the Ministry of Finance (d) assume it is an executive body

5. Answers and Explanations

5.1 Level 1

Q	Ans	Explanation
1	b	Dhanbad - a coal city, which matches the subject
2	b	Mumbai - a port city, matching its dock-work remit
3	b	Chandigarh and Shimla
4	a	Noida
5	b	The Labour Bureau
6	d	2016 = 100 , revised from 2001 = 100
7	c	1942
8	b	The Union Minister of Labour and Employment
9	b	The 15th session, 1957
10	b	The Chief Labour Commissioner (Central)
11	c	2021
12	b	A Labour Identification Number (LIN)
13	b	The National Statistical Office - not the Labour Bureau. The commonest error in this area
14	b	A statutory body under the EPF & MP Act, 1952
15	c	The Union Minister of Labour and Employment
16	b	The Central Provident Fund Commissioner

5.2 Level 2

Q	Ans	Explanation
17	b	Concurrent List - Entries 22, 23, 24 and 36, so both Union and States are competent
18	b	Central - banking and insurance companies, railways, mines, oilfields, major ports and central PSUs
19	b	Entry 55 of the Union List , so States may not legislate on mine safety at all
20	c	The Labour Bureau is an attached office , created by executive order. EPFO, ESIC and the CBT are statutory
21	c	Advisory - the most examinable ILC fact
22	b	CPI-IW → dearness allowance → "wages" (basic + DA + retaining) → provident fund contributions . A statistical index ends up determining the amount you assess
23	b	The PLFS is the NSO's. The Labour Bureau does CPI-IW, the wage rate index and occupational wage surveys
24	b	The Office of the Economic Adviser , Ministry of Commerce and Industry
25	b	Settling on payment of a sum , avoiding prosecution
26	b	Where the offence is repeated within a specified period. Fine-only offences are precisely the ones that generally can be compounded, so (a) is inverted
27	c	Web-based randomised allocation, to reduce discretion and harassment

Q	Ans	Explanation
28	b	e-Shram , which issues a Universal Account Number to each registered unorganised worker
29	a	EPF, EPS 1995, EDLI 1976 - three schemes, one enabling Act
30	b	Tripartite - Central and State Governments, employers and employees

5.3 Level 3

Q	Ans	Explanation
31	a	A-3 DGMS Dhanbad; B-1 DGFASLI Mumbai; C-4 Labour Bureau Chandigarh and Shimla; D-2 VVGNNLI Noida
32	a	1 and 2 only. VVGNNLI is an autonomous body, not constitutional. Very few bodies are constitutional - the Finance Commission, the Election Commission, the CAG, the UPSC, the GST Council
33	c	ILC recommendations are advisory , not binding. The other three statements are correct
34	d	All three correct. Tripartism runs from the ILO through the ILC to the CBT - the same principle at three levels
35	b	Section 7-I to the CGIT acting as the EPF Appellate Tribunal, then Article 226. Article 32 is for Fundamental Rights and the natural forum is the High Court under the wider Article 226
36	b	An " other authority " and therefore " State " under Article 12 - which is why Articles 14 and 21 bind its officers and Article 226 review lies
37	b	The Codes shifted the enforcement basis from inspection to records and registration , so the platforms carrying those records determine whether the reform works
38	a	2, 3, 1, 4 - Part IV direction, then legislative competence under the Concurrent List, then the creation of EPFO, then judicial review of its officers' orders
39	d	e-Shram is the Ministry of LABOUR AND EMPLOYMENT's , not MoSPI. The other three pairs are correct
40	b	The three-fact rule - nature, parent Ministry, one distinctive number or function. It answered five questions in the 2023 paper alone

6. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F2.10 - LABOUR ADMINISTRATION

THE THREE-FACT RULE every institution = **NATURE** (constitutional / statutory / executive / fund / scheme / attached office) + **PARENT MINISTRY** + **ONE distinctive number or function** · answered **five** questions in the 2023 paper (CAMPa, BIRAC, eSanjeevani, DEA, National Health Policy 2.5% of GDP)

CATEGORIES - THE COMMONEST ERROR EPFO and ESIC = **STATUTORY** · Labour Bureau, DGMS, DGFASLI = **ATTACHED** or **SUBORDINATE OFFICES** · VVGNI = **AUTONOMOUS** · NITI Aayog = **EXECUTIVE** · Finance Commission = **CONSTITUTIONAL**

WHY TWO ADMINISTRATIONS labour is **CONCURRENT** (Entries 22, 23, 24, 36) so both Union Ministry and State Labour Departments · **mines and oilfields** = **UNION LIST ENTRY 55** ·

appropriate Government CENTRAL for railways, mines, oilfields, major ports, **banking and insurance companies**, central PSUs; **STATE** for the rest

OFFICES AND LOCATIONS CLC(C) New Delhi = **Central Industrial Relations Machinery**, central-sphere enforcement and conciliation · **DGMS DHANBAD** = Mines Act · **DGFASLI MUMBAI** = factories and dock safety, Central Labour Institute · **LABOUR BUREAU CHANDIGARH** and **SHIMLA** = statistics, **CPI-IW** · **VVGNI NOIDA** = research and training · **DGE** = National Career Service · **Dattopant Thengadi Board, Nagpur** = workers' education · *DGMS in a coal city, DGFASLI in a port city*

TRIPARTITE MACHINERY INDIAN LABOUR CONFERENCE - apex, first convened **1942**, chaired by the **UNION LABOUR MINISTER**, recommendations **ADVISORY** · **Standing Labour Committee** below it · **Industrial Committees** below that · **THE 15th SESSION, 1957** gave the **NEED-BASED MINIMUM WAGE NORMS** - 3 consumption units, 2,700 calories, 72 yards, rent, 20% fuel and miscellaneous

TRIPARTISM AT THREE LEVELS ILO (2:1:1, unique in the UN) → **Indian Labour Conference** → **EPFO's Central Board of Trustees**

CPI-IW compiled by the **LABOUR BUREAU**, base **2016 = 100** (from 2001 = 100) · **THE CHAIN:** **CPI-IW** → **DEARNESS ALLOWANCE** → **"WAGES"** (basic + DA + retaining) → **PROVIDENT FUND CONTRIBUTIONS**

WHO PRODUCES WHAT CPI-IW = Labour Bureau · **CPI Rural/Urban/Combined** = **NSO** · **WPI** = Office of the Economic Adviser, Ministry of Commerce and Industry · **PLFS** = **NSO**, **NOT** the Labour Bureau · **e-Shram** = Ministry of Labour and Employment

DIGITAL SHRAM SUVIDHA = **Labour Identification Number (LIN)**, single online return, **web-based randomised inspection allocation** · **e-SHRAM 2021** = national database of **unorganised** workers with a **UAN** · **NCS** = job matching · **EPFO's UAN** = portable number across employers

ENFORCEMENT Inspector-cum-Facilitator - advises and enforces, **randomised web-based inspection** · **COMPOUNDING** = settle on payment, avoiding prosecution, generally **NOT available for a repeated offence** · opportunity to comply before prosecution for a first non-serious contravention

EPFO ON THE CHART STATUTORY body under the **EPF & MP Act 1952** · parent **Ministry of Labour and Employment** · governed by the **TRIPARTITE CENTRAL BOARD OF TRUSTEES** chaired by the **Union Labour Minister** · chief executive **CENTRAL PROVIDENT FUND COMMISSIONER** · field: Additional CPFC, Regional PFC, **Assistant Provident Fund Commissioner** · administers **EPF, EPS 1995, EDLI 1976**

THE FULL CHAIN - THE SPINE OF THE MANUAL Art 39/41/42/43 (Part IV, non-justiciable) → Parliament acts anyway → competence from **Concurrent Entries 23 and 24 with Art 246** → **EPF & MP Act 1952**, an **enabling Act** → **three schemes** and **EPFO**, statutory, under the **Ministry of Labour and Employment**, tripartite CBT → EPFO is an **"other authority"** = **"State"** under **Art 12** → so an **APFC's Section 7A** power is bound by **Art 14** (reasons, consistency) and **Art 21** (*Maneka Gandhi* - notice and hearing) → appeal under **s.7-I to the CGIT as EPF Appellate Tribunal** → **High Court under Art 226**, seeking **certiorari**

7. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F2.10 - LABOUR ADMINISTRATION

THREE-FACT RULE nature · parent Ministry · one number or function

STATUTORY EPFO · ESIC · CBT — **ATTACHED/SUBORDINATE** Labour Bureau · DGMS · DGFASLI — **AUTONOMOUS** VVGNLI

LOCATIONS DGMS DHANBAD · DGFASLI MUMBAI · **LABOUR BUREAU CHANDIGARH + SHIMLA** · VVGNLI NOIDA

CLC(C) = CENTRAL INDUSTRIAL RELATIONS MACHINERY

ILC apex · 1942 · Union Labour Minister · **ADVISORY** · 15th session 1957 = minimum wage norms

TRIPARTISM: ILO → ILC → CBT

CPI-IW = LABOUR BUREAU, BASE 2016 = 100 · PLFS = NSO · WPI = Economic Adviser

THE CHAIN THAT MATTERS TO YOU CPI-IW → DA → WAGES → PF CONTRIBUTIONS

SHRAM SUVIDHA = LIN + randomised inspection · e-SHRAM 2021 = unorganised database + UAN

COMPOUNDING = pay and avoid prosecution · **not for repeat offences**

EPFO statutory · **Ministry of Labour and Employment** · **CBT chaired by the Union Labour Minister** · **CPFC** chief executive · **EPF + EPS 1995 + EDLI 1976**

THE SPINE Part IV → Entries 23 and 24 → EPF Act 1952 → EPFO → **Art 12 "State" → Art 14 + 21 → s.7-I CGIT → Art 226 certiorari**

ACTION · MODULE 2 FOUNDATION COMPLETE - WHAT COMES NEXT

That closes **Module 2**: ten chapters covering what labour law is, trade unions, industrial disputes, standing orders, the wages group, factories and safety, contract labour and migrants, the protective statutes, the four Codes consolidated, and labour administration.

The build now moves to **Module 3 - Social Security and EPFO**, the subject of the post itself. It begins with **F3.1 - what social security is**, and the **ILO's nine contingencies**, then works through the **EPF & MP Act 1952 section by section**, the **three schemes**, and a **fully worked Section 7A inquiry** from notice to appealable order.